

MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

THIS MUTUAL NON-DISCLOSURE AGREEMENT (the “Agreement”) is made and entered into on this 10th day of May, 2026 (the “Effective Date”),

BY AND BETWEEN:

INNOVATEX PRIVATE LIMITED,

a company incorporated under the Companies Act, 2013, having its registered office at Bandra Kurla Complex, Mumbai – 400051

(hereinafter referred to as the “Disclosing Party”, which expression shall, unless repugnant to the context, include its successors and assigns),

AND

RAHUL SHARMA,

S/o Mahesh Sharma, residing at Flat No. 12, Shanti Nagar, Andheri East, Mumbai – 400069,

PAN: ABCPS1234K

(hereinafter referred to as the “Receiving Party”).

The Disclosing Party and Receiving Party shall hereinafter be collectively referred to as the “Parties”.

1. PURPOSE

The Parties intend to engage in discussions relating to a proposed business collaboration involving software development, financial analytics, and proprietary AI systems (the “Purpose”). In connection with the Purpose, the Disclosing Party may disclose certain confidential and proprietary information to the Receiving Party.

2. DEFINITION OF CONFIDENTIAL INFORMATION

2.1 “Confidential Information” shall include, without limitation:

- a) Technical data, algorithms, source code, system architecture
- b) Business strategies, financial statements, projections
- c) Customer data, personal identifiable information (PII)
- d) Trade secrets, inventions, know-how, research
- e) Any information marked as “confidential” or reasonably understood as confidential

2.2 Confidential Information may be disclosed in written, oral, electronic, or visual form.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information shall not include information which:

- a) Is or becomes publicly available without breach of this Agreement**
 - b) Was lawfully known prior to disclosure**
 - c) Is independently developed without use of Confidential Information**
 - d) Is required to be disclosed by law or court order**
-

4. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party shall:

- 4.1 Maintain strict confidentiality and not disclose information to any third party without prior written consent**
 - 4.2 Use the Confidential Information solely for the Purpose**
 - 4.3 Implement reasonable security measures including encryption, access controls, and restricted sharing**
 - 4.4 Limit access to employees or agents strictly on a need-to-know basis**
-

5. DATA PROTECTION AND PRIVACY

- 5.1 The Receiving Party shall comply with applicable data protection laws including the Information Technology Act, 2000**
 - 5.2 Any personal data shared shall be processed only for the Purpose and stored securely**
 - 5.3 In case of data breach, the Receiving Party shall notify the Disclosing Party within 48 hours**
-

6. NON-COMPETE AND NON-SOLICITATION

- 6.1 The Receiving Party shall not directly or indirectly engage in competing business activities for a period of 12 months**

6.2 The Receiving Party shall not solicit employees, clients, or vendors of the Disclosing Party

7. TERM AND TERMINATION

7.1 This Agreement shall remain in force for 3 years from the Effective Date

7.2 Obligations relating to confidentiality shall survive termination for an additional 5 years

8. RETURN OR DESTRUCTION OF INFORMATION

Upon termination or upon request, the Receiving Party shall:

- a) Return all Confidential Information**
 - b) Destroy all copies including digital storage**
 - c) Certify destruction in writing**
-

9. INDEMNITY

The Receiving Party agrees to indemnify and hold harmless the Disclosing Party from any losses, damages, liabilities, or expenses arising out of breach of this Agreement.

10. LIMITATION OF LIABILITY

Except in cases of willful misconduct or breach of confidentiality, liability shall be limited to ₹10,00,000.

11. LIQUIDATED DAMAGES

In case of breach of confidentiality, the Receiving Party shall pay liquidated damages of ₹25,00,000, without prejudice to other legal remedies.

12. FORCE MAJEURE

Neither Party shall be liable for failure to perform obligations due to events beyond reasonable control including natural disasters, war, or government actions.

13. DISPUTE RESOLUTION

13.1 Any dispute shall be resolved through arbitration under the Arbitration and Conciliation Act, 1996

13.2 The seat of arbitration shall be Mumbai

13.3 The language of arbitration shall be English

14. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of India and subject to the exclusive jurisdiction of courts in Mumbai.

15. NOTICES

All notices shall be in writing and sent via registered post or email to the addresses mentioned above.

16. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the Parties and supersedes all prior communications.

17. AMENDMENT

Any modification shall be valid only if made in writing and signed by both Parties.

18. SEVERABILITY

If any provision is held invalid, the remaining provisions shall remain enforceable.

19. DIGITAL EXECUTION

This Agreement may be executed electronically and shall have the same legal validity as a physical signature.

SIGNATURES

Disclosing Party: _____

Name: Authorized Signatory

Receiving Party: _____

Name: Rahul Sharma

Date: 10 May 2026

WITNESSES

Witness 1: Amit Verma

Signature: _____

Witness 2: Sneha Patil

Signature: _____

NOTARY

Notary Public

(Seal)

Commission Expiry: _____